UCC Contractor Trust Accounts: Analysis, Validity Assessment, and Professional Template Guide

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> **Disclaimer:** This document is for informational and educational purposes only and does not constitute legal advice. All templates provided herein should be reviewed and adapted by a qualified legal professional before use in any actual transaction. The legal analysis reflects established court rulings and statutory law as of the date of publication.

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1. Executive Summary

This document provides a comprehensive analysis of the YouTube video "UCC Window Sticker: How to File a 3-Day Bill of Credit Set-Off" (Robots & Patriots, February 22, 2026), validates the legal claims made therein against established statutory and case law, and presents a professionally rewritten template framework for the legitimate application of UCC principles in contractor trust accounts, commercial contracts, and credit and debt management.

The video, developed by the late Patrick Devine and archived by the channel "Robots & Patriots," promotes a framework in which an individual obtains an Employer Identification Number (EIN), uses it to establish a "UCC Contract Trust," and then issues a "Bill of Credit" to discharge debts — in the example given, to acquire a Ford truck without conventional payment. The framework is rooted in sovereign citizen ideology and has been uniformly rejected by federal and state courts as legally frivolous and, in many instances, as the basis for criminal prosecution.

The legitimate UCC framework, by contrast, offers powerful and enforceable tools for contractors, subcontractors, suppliers, and project owners. These include UCC Article 9 security interests, construction trust fund accounts, performance and payment bonds under the Miller Act, and properly structured set-off rights in commercial contracts. This document provides ready-to-use templates and a step-by-step guide for implementing these legitimate mechanisms.

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2. Video Analysis and Validity Assessment

2.1. Summary of the Video's Claims

The video, described as a "landmark archival session," presents the following core claims:

Claim	Description
UCC Contract Trust via EIN	Obtaining an EIN from the IRS establishes a "UCC Contract Trust" with the U.S. Treasury acting as the "contractor."
Bill of Credit Set-Off	A vehicle window sticker functions as a "Banking CREDIT/DEBT Set-Off Obligation" that can be endorsed by a "Foreign Grantor Trust" to discharge the purchase price.
3-Day Set-Off Order	A formal "3-Day Set-Off Order" submitted to the "Treasury UCC Contract Trust Division" settles the debt within three days.
Performance and Payment Bonds	Each trust is backed by a "Performance Construction Bond" and an "IRS Payment Bond" from which settlements can be drawn.
Autograph vs. Signature	An "autograph" represents the living man and has legal standing; a "signature" represents a "dead corporate fiction."

Non-UCC Private Property	Refusing commercial warranties and dealership advertisements establishes the vehicle as "Non-UCC Private Property," removing licensing, taxing, and insurance requirements.
Title 15 USC § 1 & 2 Enforcement	Failure to settle after three days triggers a "Violation of Right Trade Action" under the Sherman Antitrust Act, involving the Secret Service.

2.2. Legal Validity Assessment

Finding: The video's framework is legally invalid and potentially criminal. The following analysis addresses each major claim against established law.

2.2.1. The "UCC Contract Trust" and EIN

An Employer Identification Number (EIN) is a nine-digit number assigned by the Internal Revenue Service for tax administration purposes.[1] It identifies a business entity for federal tax filings. The IRS does not create a "trust" upon issuance of an EIN, and the U.S. Treasury does not maintain a secret account in the name of any individual or trust that can be drawn upon to pay private debts. This claim has no basis in the Internal Revenue Code, the UCC, or any other body of law.

Courts have consistently held that arguments premised on the existence of a secret Treasury account are "legally frivolous and deserving of summary rejection."[2] The Indiana courts' language, cited by Amundsen Davis, is representative of the judicial consensus across all jurisdictions.

2.2.2. The "Bill of Credit" as a Negotiable Instrument

Under UCC Article 3, a negotiable instrument must be an unconditional promise or order to pay a fixed amount of money, payable to bearer or to order, and must be signed by the maker or drawer.[3] The term "bill of exchange" is understood in Article 3 as a synonym for a "draft" — an order directed at a drawee (typically a bank) that has agreed to honor it.

The "Bill of Credit" promoted in the video fails every test of a valid negotiable instrument:

- It is drawn on a fictitious Treasury account, not a legitimate financial institution.
- The "drawee" (the U.S. Treasury) has not agreed to honor any such instrument.
- It is not a genuine order to pay a fixed sum from actual funds held by the drawer.

Financial institutions are advised to reject such instruments in writing as invalid forms of payment, and courts have dismissed all attempts to enforce them.[4]

2.2.3. The Right of Set-Off

The right of set-off is a legitimate legal doctrine. As the U.S. Department of Justice's Civil Resource Manual explains:

> "Setoff is an equitable right of a creditor to deduct a debt it owes to the debtor from a claim it has against the debtor arising out of a separate transaction."5

However, this right requires **mutual, pre-existing debts between the same parties**. An individual cannot unilaterally create a fictitious "credit" and use it to set off a legitimate obligation owed to a third party. UCC § 3-603 governs tender of payment and provides that a refused tender may discharge certain ancillary obligations (such as post-due-date interest), but it does not discharge the underlying principal debt.6 The video's misreading of § 3-603 as a mechanism for complete debt discharge is a well-documented sovereign citizen misinterpretation.

2.2.4. Performance and Payment Bonds

Legitimate performance and payment bonds are issued by licensed surety companies, not by the IRS or the U.S. Treasury. Under the Miller Act (40 U.S.C. §§ 3131–3134), prime contractors on federal construction projects must furnish bonds issued by a qualified surety.7 There is no mechanism by which an individual can draw on a government-issued "bond" to pay personal debts.

2.2.5. The "Autograph vs. Signature" Distinction

This distinction has no basis in the UCC or any other body of law. UCC § 3-401 defines "signature" broadly to include any symbol executed or adopted by a party with present intent to authenticate a writing.8 Courts have universally rejected the argument that using an "autograph" or adding qualifiers such as "without prejudice" or "non-UCC" to a signature alters one's legal obligations.

2.2.6. Title 15 USC § 1 & 2 and the Sherman Antitrust Act

The Sherman Antitrust Act (15 U.S.C. §§ 1–2) prohibits contracts, combinations, and conspiracies in restraint of trade and monopolization.9 It does not provide a private right of action for individuals to compel creditors to accept fraudulent instruments. The claim that a creditor's refusal to accept a "Bill of Credit" constitutes a violation of the Sherman Act is entirely without merit and has never been upheld by any court.

2.3. Legal Consequences of Using These Methods

The following table summarizes the documented legal consequences for individuals who have employed these tactics:

Case / Authority	Outcome
U.S. v. Green, D.S.C. (2015)	30 months imprisonment for conspiracy to defraud using EFT debt elimination scheme.10
In re Hill, Bankr. E.D. Tenn. (2015)	Court rejected Redemptionist theory; motion denied.11
Kalinowski, Montana Law Review (2019)	Comprehensive review of 100+ cases; all sovereign citizen UCC arguments rejected.12
FLSD Case 1:24-cv-24273-RKA (2025)	Court dismissed claims that a "Bill of Exchange" satisfied debt obligations.13

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3. The Actual UCC Framework: What the Law Says

The Uniform Commercial Code is a comprehensive set of laws governing commercial transactions in the United States, adopted in substantially similar form by all 50 states. It is organized into articles, each governing a specific type of commercial transaction.

3.1. UCC Article 1 — General Provisions

Article 1 establishes the foundational principles of the UCC, including the paramount obligation of **good faith**:

> "Every contract or duty within the Uniform Commercial Code imposes an obligation of good faith in its performance and enforcement." — UCC § 1-30414

Good faith is defined as "honesty in fact and the observance of reasonable commercial standards of fair dealing." This principle underlies every UCC transaction and is the antithesis of the deceptive schemes promoted in the video.

3.2. UCC Article 3 — Negotiable Instruments

Article 3 governs checks, promissory notes, and drafts (bills of exchange). A valid negotiable instrument must be:

- An unconditional promise or order to pay a **fixed amount of money**;
- Payable to bearer or to order;
- Payable on demand or at a definite time; and
- Signed by the maker or drawer.3

Legitimate uses of Article 3 instruments in commercial contracting include promissory notes for equipment financing, drafts for international trade transactions, and checks for routine payment obligations.

3.3. UCC Article 9 — Secured Transactions

Article 9 is the most powerful tool available to contractors and commercial parties for securing payment. It governs security interests in personal property and provides a mechanism for creditors to establish priority claims on a debtor's assets.

A security interest is created by a **security agreement** (a written contract granting the interest) and is made effective against third parties by **perfection**, typically through the filing of a **UCC-1 financing statement** with the Secretary of State.[15] Once perfected, the secured party has a priority claim on the collateral in the event of the debtor's default or bankruptcy.

3.4. The Common Law Right of Set-Off

The right of set-off is a legitimate equitable doctrine that allows a party to reduce the amount it owes to another party by the amount that party owes to it. For a valid set-off, the following elements must be present:

1. **Mutual debts:** Both parties must owe money to each other.
2. **Same capacity:** The debts must be owed in the same capacity (e.g., not mixing personal and business debts).
3. **Matured obligations:** The debts must be due and owing.

This right is recognized in UCC § 9-340 for banks with respect to deposit accounts and is a standard provision in well-drafted commercial contracts.

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4. Legitimate UCC Contractor Trust Account Applications

4.1. Construction Trust Fund Statutes

Many states have enacted construction trust fund statutes that impose a fiduciary duty on contractors who receive payments from project owners. Under these statutes, the contractor holds the funds in trust for the benefit of the subcontractors and suppliers who have contributed labor and materials to the project. Misappropriation of these trust funds can result in both civil and criminal liability.

The legal basis for these trust accounts is rooted in state statute, not the UCC directly. However, UCC Article 9 can be used to perfect a security interest in the contractor's accounts receivable, which includes the right to receive payment from the project owner. This provides an additional layer of protection for subcontractors and suppliers.

4.2. UCC-1 Financing Statements for Contractors

A UCC-1 financing statement is a public notice filed with the Secretary of State that a secured party has a security interest in a debtor's assets. For contractors, this is a critical tool for:

- **Subcontractors and suppliers:** Perfecting a security interest in the general contractor's accounts receivable to ensure payment priority.
- **Equipment lenders:** Securing a lien on equipment financed for a project.
- **Project owners:** Notifying other creditors of their interest in the project's proceeds.

4.3. Performance and Payment Bonds

Performance and payment bonds are surety instruments that provide a financial guarantee of contractual performance and payment. They are issued by licensed insurance and surety companies and are governed by both state and federal law.

- **Performance bonds** guarantee that the contractor will complete the project according to the contract terms. If the contractor defaults, the surety steps in to complete the project or compensate the owner for the cost of completion.
- **Payment bonds** guarantee that the contractor will pay all subcontractors, suppliers, and laborers. If the contractor fails to pay, the claimants can make a claim directly against the bond.

Under the **Miller Act** (40 U.S.C. § § 3131–3134), all prime contractors on federal construction projects with a contract value exceeding $150,000 must furnish both a performance bond and a payment bond.[7] Most states have analogous "Little Miller Act" statutes for state-funded projects.

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5. Template Documentation Suite

The following templates are provided for educational purposes and represent legitimate, legally sound instruments for use in commercial contracting and UCC applications. All templates should be reviewed by legal counsel before use.

Template 1: UCC Contractor Project Trust Account Agreement

UCC CONTRACTOR PROJECT TRUST ACCOUNT AGREEMENT

Agreement No.: ____________________

Project Name: ____________________

Date: ____________________

This UCC Contractor Project Trust Account Agreement ("Agreement") is entered into as of the date set forth above, by and between the parties identified below, in connection with the Project described herein.

PARTIES

Trustee (General Contractor):

Name: ____

Business Address: ____

State of Incorporation/Organization: __________________________

EIN: ____

Project Owner:

Name: ____

Business Address: ____

Beneficiaries: All subcontractors, material suppliers, equipment lessors, and laborers providing services or materials for the Project, as identified in the Project's subcontract and supplier agreements.

RECITALS

WHEREAS, the Trustee has entered into a prime contract with the Project Owner for the construction of the Project;

WHEREAS, the Trustee will receive payments from the Project Owner in connection with the Project;

WHEREAS, the parties desire to establish a trust account to hold and disburse such payments for the benefit of the Beneficiaries;

NOW, THEREFORE, in consideration of the mutual covenants and agreements set forth herein, the parties agree as follows:

ARTICLE 1 — ESTABLISHMENT OF TRUST ACCOUNT

1.1 **Trust Account.** Within five (5) business days of the execution of this Agreement, the Trustee shall establish a separate, interest-bearing trust account (the "Trust Account") at the following financial institution:

> Financial Institution: _______________________________________
>
> Account Name: "[Project Name] Project Trust Account"

> Account Number: (to be assigned upon establishment)

1.2 **Segregation of Funds.** The Trustee shall not commingle the Trust Account funds with any other funds of the Trustee or any other project. All funds deposited into the Trust Account shall be used exclusively for the purposes set forth in this Agreement.

1.3 **Deposits.** The Trustee shall deposit all progress payments, retainage releases, and final payments received from the Project Owner into the Trust Account within two (2) business days of receipt.

ARTICLE 2 — DISBURSEMENT OF FUNDS

2.1 **Priority of Payment.** The Trustee shall disburse funds from the Trust Account in the following order of priority:

> (a) First, to all subcontractors, material suppliers, equipment lessors, and laborers for work performed and materials furnished to the Project, in accordance with the terms of their respective agreements;
>
> (b) Second, to the Trustee for its own direct costs of construction, including labor, materials, and equipment directly used on the Project;
>
> (c) Third, to the Trustee for its overhead and profit, as provided in the prime contract.

2.2 **Payment Schedule.** The Trustee shall make disbursements to Beneficiaries within ten (10) days of receiving payment from the Project Owner for work performed by such Beneficiaries.

2.3 **Retainage.** The Trustee shall hold retainage in the Trust Account until the conditions for retainage release under the applicable subcontracts and supplier agreements have been satisfied.

ARTICLE 3 — TRUSTEE'S DUTIES AND OBLIGATIONS

3.1 **Fiduciary Duty.** The Trustee shall act as a fiduciary for the Beneficiaries and shall administer the Trust Account with the care, skill, prudence, and diligence that a prudent person acting in a like capacity would use.

3.2 **Record Keeping.** The Trustee shall maintain accurate and complete records of all deposits into and disbursements from the Trust Account. The Trustee shall provide monthly statements to the Project Owner and, upon request, to any Beneficiary.

3.3 **Compliance with Law.** The Trustee shall administer the Trust Account in compliance with all applicable federal, state, and local laws, including any applicable construction trust fund statutes.

ARTICLE 4 — SECURITY INTEREST

4.1 **Grant of Security Interest.** As additional security for the obligations of the Trustee to the Beneficiaries, the Trustee hereby grants to the Beneficiaries a security interest in the

Trust Account and all funds held therein.

4.2 **UCC Filing.** The Trustee authorizes the Project Owner or any Beneficiary to file a UCC-1 financing statement to perfect the security interest granted herein.

ARTICLE 5 — TERMINATION

5.1 This Agreement shall terminate upon the final payment of all Beneficiaries, the release of all retainage, and the resolution of all claims related to the Project.

ARTICLE 6 — GOVERNING LAW

6.1 This Agreement shall be governed by the laws of the State of _______________, including the Uniform Commercial Code as adopted therein.

IN WITNESS WHEREOF, the parties have executed this Agreement as of the date first written above.

TRUSTEE (GENERAL CONTRACTOR):

Signature: ______________________________ Date: ___________

Printed Name: ___________________________

Title: ___________________________________

PROJECT OWNER:

Signature: ______________________________ Date: ___________

Printed Name: ___________________________

Title: ___________________________________

Template 2: UCC Article 9 Security Agreement (Contractor/Subcontractor)

UCC ARTICLE 9 SECURITY AGREEMENT

Agreement No.: ____________________

Date: ____________________

This Security Agreement ("Agreement") is entered into as of the date set forth above, by and between:

Debtor:

Name: ____

Business Address: ____

State of Organization: ______________________________________

EIN/Tax ID: ____

Secured Party:

Name: ____

Business Address: ____

State of Organization: _____________________________________

EIN/Tax ID: ____

RECITALS

WHEREAS, the Secured Party has provided or will provide materials, equipment, labor, or financial accommodations to the Debtor in connection with the project(s) described herein;

WHEREAS, the Debtor desires to grant the Secured Party a security interest in certain collateral to secure the Debtor's obligations to the Secured Party;

NOW, THEREFORE, in consideration of the mutual covenants and agreements set forth herein, the parties agree as follows:

ARTICLE 1 — GRANT OF SECURITY INTEREST

1.1 **Security Interest.** The Debtor hereby grants to the Secured Party a continuing security interest in the following property of the Debtor (collectively, the "Collateral"):

> (a) **Accounts Receivable:** All accounts, contract rights, and general intangibles of the Debtor arising from or related to the following project(s):Project Name: ____
>
> Project Location: ____
>
> Project Owner: ____
>
> Prime Contract No. (if applicable): __________________________(b) **Equipment:** All equipment, machinery, tools, and vehicles of the Debtor used on or in connection with the above-described project(s), together with all replacements, substitutions, and additions thereto.(c) **Inventory:** All materials, supplies, and inventory of the Debtor located at or intended for use on the above-described project(s).(d) **Proceeds:** All proceeds of the foregoing, including cash, checks, instruments, and other property received upon the sale, exchange, collection, or other disposition of any Collateral.

ARTICLE 2 — OBLIGATIONS SECURED

2.1 **Secured Obligations.** This security interest secures the payment and performance of all present and future obligations of the Debtor to the Secured Party, including but not limited to:

> (a) All amounts due for materials, equipment, labor, and services provided by the Secured Party to the Debtor;
>
> (b) All interest, fees, and charges accruing on the foregoing;

> (c) All costs and expenses, including reasonable attorneys' fees, incurred by the Secured Party in enforcing this Agreement.

ARTICLE 3 — PERFECTION AND PRIORITY

3.1 **Authorization to File.** The Debtor hereby authorizes the Secured Party to file one or more UCC-1 financing statements, and any amendments thereto, in all appropriate filing offices to perfect the security interest granted herein. The Debtor shall cooperate with the Secured Party in connection with any such filings.

3.2 **Further Assurances.** The Debtor shall execute and deliver such additional documents and instruments as the Secured Party may reasonably request to perfect and maintain the perfection of the security interest granted herein.

ARTICLE 4 — REPRESENTATIONS AND WARRANTIES

4.1 The Debtor represents and warrants that:

> (a) The Debtor has full legal authority to grant the security interest described herein;
>
> (b) The Collateral is free and clear of all liens, encumbrances, and security interests, except as disclosed to the Secured Party in writing;
>
> (c) The Debtor will not create or permit any other lien or encumbrance on the Collateral without the prior written consent of the Secured Party.

ARTICLE 5 — DEFAULT AND REMEDIES

5.1 **Events of Default.** The Debtor shall be in default under this Agreement upon the occurrence of any of the following events:

> (a) The Debtor fails to pay any obligation to the Secured Party when due;
>
> (b) The Debtor becomes insolvent, makes a general assignment for the benefit of creditors, or files a petition in bankruptcy;
>
> (c) The Debtor breaches any representation, warranty, or covenant in this Agreement.

5.2 **Remedies.** Upon the occurrence of an Event of Default, the Secured Party shall have all the rights and remedies of a secured party under Article 9 of the Uniform Commercial Code, including the right to take possession of the Collateral and to sell, lease, or otherwise dispose of the Collateral in a commercially reasonable manner.

ARTICLE 6 — SET-OFF

6.1 **Right of Set-Off.** Upon the occurrence of an Event of Default, the Secured Party is hereby authorized, at any time and from time to time, to the fullest extent permitted by applicable law, to set off and apply any and all obligations of the Secured Party to the Debtor against any and all of the obligations of the Debtor to the Secured Party, irrespective of whether the Secured Party shall have made any demand under this Agreement.

ARTICLE 7 — GOVERNING LAW

7.1 This Agreement shall be governed by and construed in accordance with the laws of the State of _______________, including the Uniform Commercial Code as adopted therein.

IN WITNESS WHEREOF, the parties have executed this Agreement as of the date first written above.

DEBTOR:

Signature: ______________________________ Date: ___________

Printed Name: ___________________________

Title: ___________________________________

SECURED PARTY:

Signature: ______________________________ Date: ___________

Printed Name: ___________________________

Title: ___________________________________

Template 3: Notice of UCC Set-Off Right (Commercial Contract Clause)

UCC SET-OFF CLAUSE FOR COMMERCIAL CONTRACTS

(Insert into any commercial contract where a right of set-off is intended)

Set-Off Rights. Each party to this Agreement (each, a "Party") shall have the right, to the fullest extent permitted by applicable law, to set off against any amounts owed by such Party to the other Party any amounts owed by the other Party to such Party under this Agreement or any other agreement between the Parties. A Party exercising its right of set-off shall provide written notice to the other Party within five (5) business days of exercising such right, specifying the amounts being set off and the basis therefor. The exercise of the right of set-off shall not constitute a waiver of any other right or remedy available to the exercising Party.

Template 4: Payment Bond Claim Notice

NOTICE OF CLAIM ON PAYMENT BOND

Date: ____________________

Bond No.: ____________________

Project Name: ____________________

Project Location: ____________________

TO:

Principal (General Contractor): ____________________________

Surety: ____

Address of Surety: ____

FROM (Claimant):

Name: ____

Address: ____

Type of Work/Materials Provided: ____________________________

NOTICE IS HEREBY GIVEN that the undersigned Claimant has a claim against the above-referenced Payment Bond for the following unpaid amounts:

Description of Work/Materials	Contract Amount	Amount Paid	Amount Unpaid
[Description]	$	$	$
TOTAL UNPAID			**$**

The Claimant demands payment of the total unpaid amount of **$**___________ within the time required by the applicable bond and applicable law.

The Claimant reserves all rights under the Payment Bond, the Miller Act (if applicable), any applicable state "Little Miller Act," and all other applicable laws.

Claimant: ______________________________ Date: ___________

Printed Name: ___________________________

Title: ___________________________________

Address: _________________________________

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6. Introduction Guide for Applying the Framework

This guide provides a structured introduction to implementing the legitimate UCC and contractual frameworks described in this document. It is organized by party type and provides actionable steps for each stage of a commercial transaction.

6.1. Phase 1: Pre-Contract Due Diligence

Before entering into any commercial contract, all parties should conduct the following due diligence:

Step 1 — Search UCC Filings. Conduct a UCC lien search against all counterparties at the Secretary of State's office in the state of the counterparty's organization and the state where the project is located. This will reveal any existing security interests in the counterparty's assets and help assess their financial health.

Step 2 — Verify Bonding. For any project of significant value, verify that the general contractor has obtained performance and payment bonds from a licensed, reputable surety. Request copies of the bonds and verify them with the surety directly.

Step 3 — Review State Trust Fund Statutes. Research the construction trust fund statutes of the state where the project is located. These statutes define the rights and obligations of all parties with respect to project funds.

6.2. Phase 2: Contract Execution

Step 4 — Include UCC Set-Off Clause. Include a properly drafted set-off clause (see Template 3) in all commercial contracts. This clause should clearly define the conditions under which set-off may be exercised and the notice requirements.

Step 5 — Execute a Security Agreement. For any transaction involving a significant extension of credit (e.g., a supplier providing materials on credit, a subcontractor performing work before payment), execute a UCC Article 9 Security Agreement (see Template 2) to create a security interest in the debtor's collateral.

Step 6 — Establish a Trust Account. For general contractors, establish a project-specific trust account and execute a Trust Account Agreement (see Template 1) at the commencement of the project.

6.3. Phase 3: Performance and Payment

Step 7 — File UCC-1 Financing Statement. Promptly after executing the Security Agreement, file a UCC-1 financing statement with the appropriate Secretary of State to perfect the security interest. The filing must include the correct legal names of the debtor and secured party and an adequate description of the collateral.

Step 8 — Monitor Trust Account. Project owners and subcontractors should request regular statements from the trust account and verify that funds are being deposited and disbursed in accordance with the Trust Account Agreement.

Step 9 — Document All Transactions. Maintain meticulous records of all invoices, payments, and communications related to the project. These records will be essential in the event of a dispute.

6.4. Phase 4: Dispute Resolution and Enforcement

Step 10 — Exercise Set-Off Rights. If a counterparty fails to pay an obligation, review the contract for set-off rights and exercise them in accordance with the contractual and statutory requirements. Provide timely written notice as required.

Step 11 — File a Payment Bond Claim. If a payment bond is in place and the general contractor has failed to pay, file a timely claim against the payment bond (see Template 4). Note that payment bond claims have strict notice and filing deadlines under the Miller Act and state equivalents.

Step 12 — Enforce the Security Interest. If the debtor defaults and a security interest has been perfected, the secured party may enforce the security interest by taking possession of the collateral and disposing of it in a commercially reasonable manner, in accordance with UCC Article 9, Part 6.

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7. Comparative Analysis: Fraudulent vs. Legitimate UCC Applications

The following table provides a direct comparison between the claims made in the video and the legitimate UCC framework:

Dimension	Video's Claim (Fraudulent)	Legitimate UCC Framework
Trust Creation	EIN creates a "UCC Contract Trust" with the U.S. Treasury	Trust accounts are created by written agreement and funded with actual money
Instrument Type	"Bill of Credit" drawn on a fictitious Treasury account	Promissory notes, drafts, and checks drawn on real bank accounts with actual funds
Set-Off Mechanism	Unilateral "3-Day Set-Off Order" to the Treasury	Contractual set-off clause requiring mutual debts and written notice
Bond Source	"Performance Construction Bond" and "IRS Payment Bond" from the government	Bonds issued by licensed surety companies, required by the Miller Act for federal projects
Legal Status	Rejected as legally frivolous by all courts; criminal prosecutions documented	Fully enforceable under the UCC and applicable state and federal law
Good Faith Requirement	Absent; designed to evade legitimate obligations	Mandated by UCC § 1-304 for all commercial transactions

Filing Requirements	None (relies on fictitious government accounts)	UCC-1 financing statement filed with Secretary of State to perfect security interest
Enforcement	No legitimate enforcement mechanism	Full range of UCC Article 9 remedies, including repossession and sale of collateral

8. Conclusion

The YouTube video analyzed in this document promotes a legally invalid and potentially criminal framework for discharging debts. The claims are rooted in sovereign citizen ideology, which has been uniformly rejected by courts at every level of the American legal system. Individuals who attempt to use these methods risk civil judgments, criminal prosecution, and imprisonment.

The Uniform Commercial Code, properly understood and applied, provides a robust and enforceable framework for managing credit and debt in commercial transactions. The tools available under the UCC — security interests, financing statements, trust accounts, set-off rights, and surety bonds — are powerful mechanisms that protect the legitimate interests of all parties to a commercial transaction. These tools are grounded in the rule of law, operate transparently through public filing systems, and are fully enforceable in court.

This document has provided a comprehensive suite of templates and a step-by-step guide for implementing these legitimate mechanisms. All parties engaged in commercial contracting — contractors, subcontractors, suppliers, and project owners — are encouraged to consult with qualified legal counsel to ensure that these tools are properly implemented in their specific circumstances.

9. References

End of Document

Footnotes

1. Internal Revenue Service. (2026, January 12). *Get an employer identification number.* https://www.irs.gov/businesses/small-businesses-self-employed/get-an-employer-identification-number ↩

2. Amundsen Davis LLC. (2024, March 18). *How Financial Institutions Should Handle "Sovereign Citizens."* https://www.amundsendavislaw.com/banking-brief-financial-services-insights/how-financial-institutions-should-handle-sovereign-citizens ↩
3. Cornell Law School, Legal Information Institute. (n.d.). *U.C.C. - ARTICLE 3 - NEGOTIABLE INSTRUMENTS (2002).* https://www.law.cornell.edu/ucc/3 ↩ ↩2
4. Cornell Law School, Legal Information Institute. (n.d.). *§ 3-603. TENDER OF PAYMENT.* https://www.law.cornell.edu/ucc/3/3-603 ↩
5. U.S. Department of Justice. (1996, January 26). *65. Setoff and Recoupment in Bankruptcy — Setoffs (cont'd), Recoupment.* In *Civil Resource Manual.* https://www.justice.gov/archives/jm/civil-resource-manual-65-setoff-and-recoupment-bankruptcy ↩
6. Cornell Law School, Legal Information Institute. (n.d.). *§ 3-603. TENDER OF PAYMENT.* https://www.law.cornell.edu/ucc/3/3-603 ↩
7. U.S. General Services Administration. (n.d.). *The Miller Act.* https://www.gsa.gov/system/files/miller_brochure.pdf ↩ ↩2
8. Cornell Law School, Legal Information Institute. (n.d.). *§ 3-401. SIGNATURE.* https://www.law.cornell.edu/ucc/3/3-401 ↩
9. Cornell Law School, Legal Information Institute. (n.d.). *15 U.S. Code § 1 - Trusts, etc., in restraint of trade illegal; penalty.* https://www.law.cornell.edu/uscode/text/15/1 ↩
10. U.S. Department of Justice, U.S. Attorney's Office, District of South Carolina. (2015, October 21). *Sovereign Citizens Sentenced to Prison for Debt Elimination Scheme.* https://www.justice.gov/usao-sc/pr/sovereign-citizens-sentenced-prison-debt-elimination-scheme ↩
11. *In re Hill*, No. 1:14-bk-15544-SDR (Bankr. E.D. Tenn. Sept. 18, 2015). https://www.tneb.uscourts.gov/sites/tneb/files/opinions/9_18_2015_in_re_hill.pdf ↩
12. Kalinowski IV, C. (2019). A Legal Response to the Sovereign Citizen Movement. *Montana Law Review*, *80*(2), 153–210. https://scholarworks.umt.edu/cgi/viewcontent.cgi?article=2450&context=mlr ↩
13. *Case 1:24-cv-24273-RKA*, U.S. District Court, S.D. Fla. (Jan. 6, 2025). https://www.govinfo.gov/content/pkg/USCOURTS-flsd-1_24-cv-24273/pdf/USCOURTS-flsd-1_24-cv-24273-0.pdf ↩
14. Cornell Law School, Legal Information Institute. (n.d.). *§ 1-304. OBLIGATION OF GOOD FAITH.* https://www.law.cornell.edu/ucc/1/1-304 ↩
15. Cornell Law School, Legal Information Institute. (n.d.). *U.C.C. - ARTICLE 9 - SECURED TRANSACTIONS (2010).* https://www.law.cornell.edu/ucc/9 ↩